

Accordingly, to the extent plaintiff's motion can be interpreted as a motion to set aside the dismissal entered with prejudice on April 9, 2026, the motion is denied.

“A trial court’s authority to disqualify an attorney derives from the power inherent in every court ‘[t]o control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto.’ (Code Civ. Proc., § 128, subd. (a)(5); [citations].)” (*People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1145.)

In the motion at bench, neither context is implicated. Plaintiff Shawn Wheeler, for a second time, moves to disqualify defendant Sylvia Savala's counsel, James Makasian, due to purported misconduct based on counsel and client previously having been married. Plaintiff cites to no authority, and the court is aware of none, to support his argument that a prior marital relationship between an attorney and client would constitute misconduct by the attorney or support the disqualification of counsel. The court does not intend to interfere with defendant's right to counsel of her choice in the absence of a conflict of interest.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: img on 6-29-26
(Judge's initials) (Date)

(20)

Tentative Ruling

Re: ***Rogers v. Casares et al.***
Superior Court Case No. 22CECG00402

Hearing Date: July 1, 2026 (Dept. 502)

Motion: By K&K Property Management ("K&K") to Compel Initial Responses from Kristi Rogers to Requests for Production of Documents, Set Two, Form Interrogatories, Set Two, Special Interrogatories, Set Two, and Deemed Admissions re Requests for Admissions, Set One

By Kevin Christiansen ("Christiansen") to Compel Initial Responses from Kristi Rogers to Requests for Production of Documents, Set Two, Form Interrogatories, Set Two, Special Interrogatories, Set Two, and Deemed Admissions re Requests for Admissions, Set One

By K&K and Christiansen to Compel Deposition of Kristi Rogers

By K&K and Christiansen to Compel Deposition of Nicole Sherfield

By K&K to Compel Initial Responses from Nicole Sherfield to Requests for Production of Documents, Set Two, Form Interrogatories, Set Two, Special Interrogatories, Set Two, and Deemed Admissions re Requests for Admissions, Set One

By Christiansen to Compel Initial Responses from Nicole Sherfield to Requests for Production of Documents, Set Two, Form Interrogatories, Set Two, Special Interrogatories, Set Two, and Deemed Admissions re Requests for Admissions, Set One

**If oral argument is timely requested, it will be entertained on
Wednesday, July 15 2026, at 3:30 p.m. in Department 502.**

Tentative Ruling:

To grant. (Code Civ. Proc., §§ 2030.290, 2031.300, 2033.280.) Within 10 days, plaintiffs Kristi Rogers and Nicole Sherfield shall serve verified responses to Requests for Production of Documents, Set Two, Form Interrogatories, Set Two, Special Interrogatories, Set Two. All objections are waived. The truth of all matters specified in the Request for Admissions, Set One, are deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) No sanctions are imposed on the motions to compel discovery responses or deemed admissions.

To grant the motions to compel deposition. Plaintiffs Kristi Rogers and Nicole Sherfield shall appear for deposition within 20 days of the hearing on this motion. (Code

Civ. Proc., §§ 2025.450, subd. (a), 2025.280, subd. (a).) To impose \$1,648.45 in monetary sanctions against Rogers and \$1,648.45 against Sherfield, in favor of moving parties K&K and Christiansen, to be paid to moving parties' counsel within 30 days of service of the order by the clerk.

Explanation:

On November 20, 2025 moving parties served on plaintiffs Kristi Rogers and Nicole Sherfield ("plaintiffs") the above-referenced discovery requests. To date no responses have been served. Moving parties now move for an order compelling responses to the interrogatories and production demand, and a deemed admissions order as to the requests for admission.

Since no responses have been served, and the response deadline has passed, an order compelling plaintiffs to provide initial responses to the interrogatories and production demand without objections (Code Civ. Proc., § 2030.290, subd. (a), 2031.300, subd. (a)), and ordering admitted all matters specified in the requests for admission (Code Civ. Proc., § 2033.280, subd. (b)), is warranted, and reasonable sanctions must be imposed (Code Civ. Proc., §§ 2023.010, subd. (d), 2023.030, subd. (a); *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 404). No sanctions are imposed on these motions, however, as the motions give no notice of the amount of sanctions, and moving parties provide the court with no information regarding the expense incurred in making the motions. With respect to the requests for admissions, this will be the order of the court unless plaintiffs serve, before the hearing on the motion, proposed responses that are in substantial compliance with Code of Civil Procedure section 2033.220.

Where a party fails to appear at a properly noticed deposition, and no valid objection under section 2025.410 has been served, the party giving the notice may move for an order compelling the deponent's attendance and testimony. (Code Civ. Proc., § 2025.450, subd. (a).) Defendants' motions are supported by evidence of the subject deposition notices served on plaintiffs and their failure to appear. Plaintiffs did not serve objection to the deposition notices or oppose these motions, despite proper service of each. Therefore, the motions to compel deposition are granted, and reasonable sanctions imposed. Only \$1,648.45 in sanctions is imposed on each motion to compel deposition, as that is the only information provided to the court.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

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